

9. 24CV02337 Fink, Paul et al v. Fink, Erika et al.

EVENT: Defendant Erika Fink's Motion to Stay the Action Pending Resolution of the Related Divorce Proceedings

The motion for stay is granted. However, the Court sees no reason to stay discovery, consequently discovery will remain open. Although the Court is not finding any potential conflicts between this case and the Family Law case on the surface, the Court is erring on the side of caution.

Any party may file a motion to lift the stay once the Family Law case has adjudicated all issues with respect to the characterization of property.

Defendant shall prepare the form of order within two weeks.

10. 25CV00186 Estate of Tyler Simmons et al v. Sladariu, Benjamin

EVENT: Motion to Compel Compliance with Deposition Subpoena of Business Records

Preliminarily, the District Attorney's objections were not waived. Privileges are preserved unless the holders fail to object in a proceeding where they have standing and the opportunity to claim them. (*Monarch Healthcare v. Superior Court* (2000) 78 Cal.App. 4th 1282, 1290) [Emphasis Added] Additionally, the DA has represented that it has produced all documents other than those that were not generated by the DA and those subject to work product privilege. Thus, the motion is moot to the extent documents have been produced.

To the extent the subpoena seeks documents that were not generated by the DA, it is well settled that it is not required to produce such documents. (See *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039, 1041) Regarding the work product privilege, the DA has established attorney Jennifer Bennett's notes and related materials are privileged.

11. 25CV01688 Pressley, Ronald v. General Motors, LLC

EVENT: Plaintiff's Motion to Vacate Dismissal Pursuant to CCP 473(b)

Plaintiff's Motion to Vacate Dismissal Pursuant to CCP 473(b) is GRANTED. A Case Management Conference is hereby scheduled for July 15, 2026 at 10:30am. Additionally, consistent with the Legislature's intent in enacting CCP 871.26, the parties are ordered to mediate this case within 150 days of this order.

Plaintiff shall prepare a form of order consistent with this ruling within 2 weeks.

12. 25CV03376 Li, Yi v. AMCAL Chico, LLC et al.

EVENT: Plaintiff's Motion for Leave to File Second Amended Complaint

Plaintiff's Motion for Leave to File Second Amended Complaint is denied. On May 17, 2026 Plaintiff attempted to file a proof of service with the Court. That proof of service does not demonstrate that this motion was served – rather it is a proof of service re: "Notice Regarding Electronic Service". Additionally, CRC 3.1300 requires the proof of service be filed no later than five court days before the hearing.

Further, CCP 1013b sets forth the requirements for a proof of service when service is accomplished via e-mail. The proof of service submitted does not satisfy the requirements of CCP 1013b: it does not set forth "the exact title of the document served and filed in the cause", which in this case should have been the initial motion; and the proof of service does not state the date for which the moving papers were served.

As Plaintiff appears to have elected to use electronic service as the primary means of service, Plaintiff is directed to comply with CCP 1013b when filing future proofs of service. Best practices dictate a proof of service should be filed contemporaneously with the underlying document.